

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 1
Honorable Eunice Lee, Presiding
TBD, Courtroom Clerk
191 North First Street, San Jose, CA 95113

DATE: June 4, 2026 TIME: 9:00 A.M. and 9:01 A.M.

**To contest the ruling, call the Court at (408) 808-6856 before 4:00 P.M.
Make sure to also let the other side know before 4:00 P.M. that you plan to contest the ruling,
in accordance with California Rule of Court, Rule 3.1308(a)(1) and Local Rule 8D.**

****Please specify the issue to be contested when calling the Court and counsel****

LAW AND MOTION TENTATIVE RULINGS

LINE 2	25CV469138	Jiaojiao Ye vs Tracy Chang et al	Demurrer Defendant Chang filed this demurrer to the complaint on September 5, 2025, the motion was accompanied by a proof of service indicating electronic service to the plaintiff on that same day. An additional proof of service via electronic service was filed on September 24, 2026. The motion is unopposed. Per Code of Civil Procedure section 1005(b) opposition papers were due on May 21, 2026. No opposition papers were filed. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c); <i>Sexton v. Superior Court</i> (1997) 58 Cal.App.4th 1403, 1410). Failure to oppose a motion leads to the presumption that the plaintiff has no meritorious arguments. (<i>Laguna Auto Body v. Farmers Ins. Exchange</i> (1991) 231 Cal.App.3d 481, 489). Pursuant to Code of Civil Procedure section 430.10, a party may demur to a complaint on the grounds that it “does not state facts sufficient to constitute a cause of action.” (Code Civ. Proc., § 430.10, subd. (e)). A demurrer tests whether the complaint states a cause of action. (<i>Hahn v. Mirda</i> (2007) 147 Cal.App.4th 740, 747 (<i>Hahn</i>)). When considering demurrers, courts accept all well pleaded facts as true. (<i>Fox v. JAMDAT Mobile, Inc.</i> (2010) 185 Cal.App.4th 1068, 1078). In ruling on a demurrer, the Court treats it “as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” (<i>Piccinini v. Cal. Emergency Management Agency</i> (2014) 226 Cal.App.4th 685, 688, citing <i>Blank v. Kirwan</i> (1985) 39 Cal.3d 311, 318 (<i>Blank</i>)). Moving party meets its burden. Based on the foregoing, the Court SUSTAINS the demurrer. Moving party to prepare the formal Order.
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LAW AND MOTION TENTATIVE RULINGS

LINE 3	24CV447980	Jeremy Williams vs Ford Motor Company et al	Motion for Summary Judgment/Adjudication Scroll down to Line 3 for Tentative Ruling.
LINE 4	23CV417149	B-Line Construction, Inc. vs Wen Lung Chow	Motion to Compel Further Responses to Form Interrogatories, Special Interrogatories, Request for Admissions, and Request for Production of Documents, Set One; and Sanctions. OFF CALENDAR, moving party WITHDREW the motion on June 1, 2026. On August 19, 2025, Plaintiff B-Line Construction, Inc. filed this motion to compel defendant Wen Lung Chow to provide— <i>further responses to 142 separate discovery</i> —form interrogatories, special interrogatories, request for admission, and request for production of documents, including: 23 further responses to form interrogatories (Nos. 304.1, 305.1, 305.5, 305.6, 305.8, 305.11, 305.12, 309.1, 309.2, 311.1, 311.2, 312.1, 313.1, 313.2, 314.1, 314.2, 314.3, 314.4; 314.5, 314.6, 324.1, 325.1, and 326.1); 59 responses to special interrogatories (Nos. 1-59); 17 further responses to request for admissions (Nos. 1-10, and 14-20); and 43 further responses to request for production of documents (Nos. 1-43). Given the complexity and extensive discovery motions, the Court will discuss having future discovery motions assigned to a discovery referee under Code of Civil Procedure section 639 and 645.1. Parties to appear. The matter is unopposed. Per Code of Civil Procedure section 1005(b) opposition papers were due on May 21, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. California Rule of Court Rule 8.54c. Failure to oppose a motion leads to the presumption that the plaintiff has no meritorious arguments. (<i>Laguna Auto Body v. Farmers Ins. Exchange</i> (1991) 231 Cal.App.3d 481, 489).